

DRUG- AND ALCOHOL-FREE WORKPLACE

The Loudoun County School Board is committed to maintaining a Drug- and Alcohol-Free Workplace in order to maintain a safe, healthy and productive environment for all students and staff.

A. Definitions.

For purposes of this policy:

1. The term “alcohol” or “alcoholic beverages” has the meaning given to the term “alcoholic beverage” in Virginia Code § 4.1-100.
2. The term “drug look-alikes” has the meaning given to the term “imitation controlled substance” in Virginia Code § 18.2-247.
3. The term “drug paraphernalia” has the meaning given in Virginia Code 18.2-265.1.
4. The term “drug” has the meaning given to the terms “controlled substance” and “marijuana” as defined in Virginia Code § 18.2-247.

B. Prohibition on Drug Use

1. On School Board Property or at School Activities. It is the policy of the Loudoun County School Board to prohibit employees from being under the influence of or using, selling, distributing, dispensing, possessing, transporting, consuming, or manufacturing illegal drugs, narcotics, drug look-alikes, drug paraphernalia, or alcoholic beverages on its premises, at any school activity, whether on or off school board property, on any school-sponsored field or foreign trip and on or in school buses and vehicles. Violations of this policy may be grounds for discipline up to and including termination of employment.

2. Unauthorized/Improper Use of Prescription Drugs. Medically authorized use of prescription drugs is permitted unless the employee was not prescribed the drugs by a healthcare provider, the employee intentionally misuses the medication, or the employee uses the medication in a way that otherwise violates state or federal law.

3. Job Performance. No employee shall report to work, perform assigned duties, participate in any School Division business or activity with students while the employee is under the influence of alcohol, marijuana (including cannabis oil), illegal drugs, or unauthorized prescription drugs.

4. Off School Board Property. The School Board reserves the right to discipline its employees, up to and including termination of employment, where an employee’s use, sale, distributing, dispensing, possession, transporting, manufacturing,

DRUG- AND ALCOHOL-FREE WORKPLACE

or being under the influence of illegal drugs and narcotics, unauthorized use of prescription drugs, or alcoholic beverages off School Board property affects the employee's ability to perform their duties, causes a disruption to the learning or working environment or causes circumstances that adversely affect the School Division, its employees, or students.

5. Over-the-Counter and Prescription Drugs. The unauthorized use or abuse of prescription drugs, over-the-counter medication, or any other substances which impair an employee's ability to perform his/her job safely or properly is prohibited.

C. Enforcement. Violations may result in discipline up to and including termination of employment and/or the requirement to participate in a drug or alcohol abuse assistance and rehabilitation program. In addition, School Board Policy 7324, Drug and Alcohol Testing for Employees Required to Hold a Commercial Driver's License (CDL), provides more extensive requirements for employees required to have a CDL.

D. Employee Notification to the Superintendent or Superintendent's Designee

1. When any employee has been charged by summons, warrant, indictment or information with the commission of any drug or alcohol related felony or misdemeanor, that employee should notify the Superintendent or the Superintendent's Designee of the charge.

2. The notification to the Superintendent or the Superintendent's Designee shall be in writing and shall be accompanied by the name and address of the complainant, date of the alleged offense and a copy of the summons, warrant, indictment, information, or other document served upon the employee notifying the employee of the charge. The written notification to the Superintendent or the Superintendent's Designee from the employee shall be provided to the Superintendent or the Superintendent's Designee, no later than the first working day following the service of the summons, warrant, indictment, or information upon the employee, or as soon as practical in extenuating circumstances.

3. Failure of the employee to give the Superintendent or the Superintendent's Designee written notice, as set forth above, may be cause for disciplinary action up to and including termination from employment. Additionally, regardless of whether an employee is terminated or resigns as a result of a violation of this policy, the superintendent may petition for the revocation of the employee's license, pursuant to regulations prescribed by the State Board of Education.

E. Employee Drug-Free Awareness Program. An employee drug-free awareness program will provide employees information on the dangers of drug and alcohol use/abuse, the provisions of this policy, the availability of the Employee Assistance Program for help and the disciplinary repercussions for violations of this policy.

DRUG- AND ALCOHOL-FREE WORKPLACE

Information will be provided in the annual employee handbook, new employee information sessions, and via periodic reminders.

F. Monitoring and Reporting. All supervisors are required to observe, monitor, and take effective action to detect and address alcohol and drug use and abuse among employees. All employees who reasonably suspect alcohol or drug use or abuse by other employees on school board property or at school activities shall report their observations to their own supervisor or to another onsite supervisor. If the reasonable suspicions are about their supervisor, employees should report their observations to another on-site supervisor. If a violation is suspected, supervisors shall immediately contact law enforcement, which could be the assigned School Resource Officer for the school or area. Once law enforcement has been contacted, the supervisor shall immediately notify the Department of Human Resources and Talent Development. If a supervisor cannot be contacted and an employee believes there is an imminent safety risk to students, staff, the public and/or to the suspected employee, the employee should immediately report their observations to law enforcement, which could be the assigned School Resource Officer for the school or area. Following the contact to law enforcement, the employee should continue to try to reach their supervisor or another member of the supervisory chain to report what has been observed and what they have reported to law enforcement.

G. Distribution of Policy. All employees shall be provided access to the electronic copy of the employee handbook which will contain information about this policy.

[Former Policy 7-37]

Adopted: 5/9/89

Revised: 4/2/13, 2/23/16, 11/28/17

Current Revision: 3/14/23

Legal Refs: Drug-Free Workplace Act of 1988, [29 C.F.R. Part 94.100](#), *et seq.*; Code of Virginia, 1950, as amended §§ [4.1-100](#), [18.2-247](#), [18.2-265.1](#), and [22.1-178](#).

Cross Refs: Policy [7542](#), Required Notification and Consequences of Criminal Charges, Convictions, and Pleas; and Department of Social Services Investigations or Dispositions for Employees; Policy [7322](#), Physical Examination and DMV Records Required; Policy [7324](#), Drug and Alcohol Testing for Employees Required to Hold a Commercial Driver's License (CDL); Policy [7530](#), Duty to Report Student Abuse and Neglect.